

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: Carole MacKay, Plaintiff

AND:

Starbucks Corporation, City of Toronto, K.J. Beamish Construction Co., Limited
and Queen Hammersmith Holdings Inc., Defendants

BEFORE: Madam Justice Pollak

COUNSEL: *Margaret Gratsias*, for the Plaintiff

Joel Cormier, for the Defendant, Starbucks Corporation

HEARD: May 25, 2010

ENDORSEMENT

[1] The Defendant, Starbucks Corporation (“Starbucks”) brings this motion for summary judgment to dismiss Carole MacKay’s (“MacKay”) Claim for damages she suffered as a result of a fall that she alleges occurred on Starbucks’ property. The property is a small patio which is immediately outside the only door entering the Starbucks premises. This patio is surrounded by an iron gate fence which has an opening at the front to allow customers to exit the Starbucks property onto the City sidewalk which is approximately 3 feet wide.

[2] Both parties are in agreement with respect to the test for summary judgment - namely, is there a genuine issue requiring a trial?

[3] Starbucks submits that on the basis of the evidence produced on this motion, it is clear that Ms. MacKay “fell either on the sidewalk or on the road or both, but in any event, outside of the Starbucks patio”. It is submitted that Ms. MacKay has failed to produce any evidence to support her claim that she fell within the Starbucks patio. In the alternative, Starbucks argues that if this Court finds that Ms. MacKay does provide evidence that she fell within the Starbucks patio, in accordance with the new Rules on summary judgment motions, I should examine the evidence and make determinations on any existing factual conflicts to determine whether or not a genuine issue requiring a trial exists. It is submitted that the weight of the evidence presented on this motion must lead this Court to a reasonable inference that Ms. MacKay fell outside of the Starbucks patio.

[4] Ms. MacKay, argues that her evidence, which is the only direct evidence on where she slipped and started to fall, establishes that there is a genuine issue requiring trial. She argues that the two independent witnesses, who have deposed that they observed her fall, did not see at what point she started to fall. Counsel for Ms. MacKay supported this argument with reference to her cross-examination of the two independent witnesses who stated that they saw Ms. MacKay fall.

[5] Ms. MacKay's evidence is that:

“as I proceeded through the small patio, suddenly and without warning, my foot began to slip on ice. As I went onto the City sidewalk I was unable to regain my footing and I fell, suffering a serious fracture to my ankle.”

Ms. MacKay's evidence was not challenged on cross-examination by Starbucks.

[6] At the hearing, counsel for Starbucks referred to a three line summary of a case annotation at page 565 of the *Rules of Civil Procedure*;

“The party opposing summary judgment must show “a real chance of success.”
A self-serving affidavit is not sufficient to create a triable issue in the absence of detailed facts and supporting evidence.

Guarantee Co. of North America v. Gordon Capital Corp. (1999), 178 D.L.R. (4th) 1, [1999] 3 S.C.R. 423, 247 N.R. 97, [2000] I.L.R. I-3741, 126 O.A.C. 1, 49 B.L.R. (2d) 68, 15 C.C.L.I. (3d) 1, 39 C.P.C. (4th) 100, 1999 CarswellOnt 3171, 1999 CarswellOnt 3172, [1999] S.C.J. No. 60”

This was referred to as authority for the proposition that Ms. MacKay's Affidavit is self-serving and cannot be relied upon in a motion for summary judgment. He did not have a copy of this case, and was not able to refer to its facts. Notwithstanding the fact that counsel did not actually read the case, and therefore could not provide any analysis, and the fact that opposing counsel could not respond with respect to the applicability of the reference, I have reviewed the Supreme Court of Canada referred to in the *Annotation* of the *Rules*. The principals enunciated in that case are not applicable to the facts of this case. In that case, the Court found that there was no legal issue to be resolved at trial as the test that would have to be applied by the Court was an objective one which did not require a finding of a loss at trial, but merely an assumption.

[7] I therefore do not accept this submission by Starbucks. Ms. MacKay's evidence is the only evidence she could reasonably be expected to produce with respect to what she recalls about how and where she fell. There is no evidence that there were other eye witnesses that should have been called.

[8] Starbucks' argument is that Ms. MacKay did not “fall” on Starbucks' property. Ms. MacKay's evidence is that she started to slip while still on Starbucks' property and continued to slip until she fell on the sidewalk. I do not accept Starbucks' argument that the fact that Ms. MacKay did not produce evidence that she “fell” on Starbucks' property entitles them to a

dismissal of Ms. MacKay's claim. Starbucks could be liable for damages if she started to slip and fall on Starbucks' property, as her fall may have been caused by ice on Starbucks' property.

[9] The uncontradicted evidence of all parties was that the conditions were extremely icy on that day. There was ice on the Starbucks patio and ice on the City sidewalk. Counsel for Ms. MacKay referred to the cross-examination of the two witnesses, who stated that they did not see where Ms. MacKay was when she "slipped" and started to fall. Neither of the witnesses saw Ms. MacKay's legs or feet at the moment where she slipped and started to fall. They both observed the position and location where Ms. MacKay ended up at the end of her fall.

[10] Counsel for Starbucks argues that this Court should refuse to accept Ms. MacKay's evidence that she slipped and fell on Starbucks' property because of the location where the independent witnesses say that she ended her fall – on the edge of the City sidewalk and partially into the road with her coffee spilling into the road. Counsel submits that it is not plausible that Ms. MacKay could have slipped or started her fall on the Starbucks patio as the City sidewalk is three feet wide. Starbucks did not however present any expert evidence with respect to this submission. I do not agree with Starbucks on this point. There is no evidence before me that it is not plausible that Ms. MacKay could slip on Starbucks' property and continue to slip and fall into and through the three feet walk sidewalk. On the basis of the Affidavit evidence of Ms. MacKay and the cross-examination of the two independent witnesses, as well as their cross-examinations, I find that the independent witnesses did not see where Ms. MacKay slipped or started her fall. Further, counsel for Ms. MacKay did point out several inconsistencies between the evidence of the husband and wife independent witnesses that suggest that either one or both of them did not have a detailed and precise recollection of where Ms. MacKay's slip and consequent fall occurred.

[11] As a result, I find that Starbucks has not met its burden of proving that there is no genuine issue that requires a trial. On the contrary, I do find that there is a genuine issue requiring a trial in this matter. That issue is where did Ms. MacKay start to slip and/or fall and whether that slip and/or fall caused her fall and injuries.

Costs

[12] Starbucks submitted that if it were the successful party in this motion, Costs including disbursements and GST should be awarded for the amount of \$15,359.72 on a substantial indemnity basis. Starbucks argues that Ms. MacKay should be penalized because she would not admit that she did not "fall" on Starbucks' property and that her claim was frivolous. Ms. MacKay submits that she is entitled to costs on a substantial indemnity basis as Starbucks' motion was premature because examinations for discovery have not taken place and as they have refused to produce certain documents regarding this motion.

[13] As the successful party to this motion, Ms. MacKay is entitled to her costs. Ms. MacKay has submitted a Bill of Costs for \$7,240.93 including disbursements and GST on a partial indemnity basis.

[14] I have considered the submissions of the parties, and I have taken into account the factors set out in Rule 57.01 of the *Rules of Civil Procedure*, R.R.O. 1990, Reg. 194. I am required to award costs that are reasonable and fair. See *Boucher v. Public Accountants Council for the Province of Ontario* (2004), 71 O.R. (3d) 291 (C.A.). I do not agree that this case merits the awarding of substantial indemnity costs against Starbucks.

[15] In the circumstances of this case, I find that it is fair and reasonable to award the amount of \$7,240.93 on a partial indemnity basis in costs including disbursements and GST to be paid by Starbucks to Ms. MacKay.

Pollak J.

Date: June 15, 2010